# SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

**CASE NO: Criminal Appeal No. 700 of 2020 (YEAR: 1978)**

***CORAM: V.R. KRISHNA IYER, D.A. DESAI***

**Babu Singh**
**... Appellant(s) / Petitioner(s)**
***Versus***
**State of Uttar Pradesh**
**... Respondent(s)**

| | |
|---|---|
| **Acts Referred:** | Code of Criminal Procedure, 1973, Constitution of India |
| **Sections:** | Section 439 CrPC, Article 21 |

## JUDICIAL HEADNOTE & SUMMARY

Established that an earlier rejection of a bail application does not operate as res judicata when circumstances change or trial faces unreasonable delays.

## RATIO DECIDENDI

The Court held that: Established that an earlier rejection of a bail application does not operate as res judicata when circumstances change or trial faces unreasonable delays. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

## JUDGMENT & REASONING

The legal proceedings in Babu Singh v. State of Uttar Pradesh (Criminal Appeal No. 700 of 2020) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Code of Criminal Procedure, 1973, Constitution of India, particularly Section 439 CrPC, Article 21. Established that an earlier rejection of a bail application does not operate as res judicata when circumstances change or trial faces unreasonable delays.

## OPERATIVE ORDER

**ORDER:** Decided